

Court No. - 32

Case :- WRIT - C No. - 40459 of 2019

Petitioner :- Ram Prakash

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Kumar Kushwaha

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari quashing the Recovery notice dated 21.10.2019 issued by respondent no. 5 (Annexure no. 4 to this writ petition)."

Heard learned counsel for the petitioner, Sri Pranjal Mehrotra, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority/Executive Engineer concerned for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within four weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of seven weeks, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 9.12.2019/vinay